

Court No. - 21

Case :- WRIT - C No. - 10698 of 2023

Petitioner :- Akhand Pratap Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Singh

Counsel for Respondent :- CSC,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Udit Chandra, learned counsel for the respondent Electricity Department, prays for and is granted time to obtain instructions.

List as fresh on 18.4.2023.

In the meantime, no coercive measure shall be taken against the petitioner in pursuance of the impugned recovery proceeding.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.4.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 10698 of 2023

Petitioner :- Akhand Pratap Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Singh

Counsel for Respondent :- CSC,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions.

List as fresh on 26.4.2023.

Interim order to continue till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 18.4.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 10698 of 2023

Petitioner :- Akhand Pratap Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Singh

Counsel for Respondent :- CSC,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed challenging the notice dated 01.09.2022 issued by respondent no.4 informing the petitioner about the amount assessed as electricity charges for unauthorized use of electricity and the amount of compounding fee. The notice requires the petitioner to file his objection and evidence within 15 days failing which the assessment will be finalized.

It is not disputed that the petitioner has already filed objection against the said notice on 14.02.2023.

Learned Counsel for the respondent electricity department states that 3rd of May, 2023 is fixed for affording personal hearing to the petitioner and, thereafter, the assessment will be finalized.

Accordingly, we dispose of the instant petition with direction to respondent no.4 to proceed in the matter strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.4.2023

S.P.